

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 11/26/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING
IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJOTEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: MSC21-01691
CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.
READINESS CONFERENCE
FILED BY:

TENTATIVE RULING:

The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01810
CASE NAME: AIM BUSINESS CAPITAL, LLC VS. MARK WOOLDRIDGE
*HEARING ON MOTION IN RE: DETERMINE GOOD FAITH OF SETTLEMENT
FILED BY: CREATIVE FINE FOODS, LLC
TENTATIVE RULING:

The hearing on this Motion is **vacated**. The Court entered an Order Determining Good Faith Settlement on November 14, 2025. No appearance is required at this hearing.

3. 9:00 AM CASE NUMBER: C23-00279
CASE NAME: ATCHISON VILLAGE VS. MANDEL
*HEARING ON MOTION IN RE: ATTORNEYS' FEES
FILED BY: MANDEL, PHYLLIS
TENTATIVE RULING:

Summary

The Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

Background

On February 7, 2023, Atchison Village ("Plaintiff") filed this case against Phyllis Mandel ("Defendant"), alleging that she caused leak by allowing her bathtub to overflow, damaging certain common property of the Plaintiff, in or around January 2020. Plaintiff claims that Defendant allowed the water to build up in the bathtub and accumulate across the bathroom floor causing a causing [sic] water damage." (Complaint, ¶ 13.) Defendants claim that Plaintiff fabricated these claims, with the knowledge that the video evidence of the alleged bathtub overflow in its possession was from an unrelated event that occurred in 2019.

Plaintiff alleged that Defendant's failure pay for the repairs "demonstrates her bad faith intent to uphold the commitment she has with Plaintiff and members of the community." Defendant also claims that Plaintiff attempted to intimidate her by threatening to terminate her membership in Atchison Village, which would be the equivalent of foreclosing/evicting her—an elderly woman—from her home that she has resided in for more than twenty years. (Complaint, ¶ 23.) (Etemadi Decl., ¶¶ 8-8; Mandel Decl., ¶ 9.).

After this Court granted Defendant's discovery motions on May 21, 2025, Plaintiff dismissed its case on June 6, 2025. The Request for Dismissal was entered on the same day, June 6, 2025.

On August 6, 2025, Defendant Phyllis Mandel (Defendant), by and through her counsel, MBK Chapman PC, filed a Motion for Attorney's Fees seeking \$94,218.32, supported by a Memorandum of Points and Authorities, Declarations of Jason K. Boss, Jessica Grazul, Sara Etemadi, Karla Garcia and Phyllis Mandel ("Motion"). The Motion was also accompanied by a Notice and Amended Notice, filed on August 13, 2025. Defendant claims that she was improperly sued in this case as a Defendant, and is now the prevailing party in this action within the meaning of Code of Civil Procedure sections 1032(a)(4) and 1033.5(a)(10(A), as well as under the express terms of Section 15 of the Mutual Ownership Contract between Atchison Village and Ms. Mandel, (below) which provides for an award

of “attorneys’ fees and costs actually incurred” to the prevailing party in any legal proceeding instituted to enforce any provision of that agreement.

Defendant claims that she achieved her sole litigation objective by obtaining a complete dismissal of all claims brought against her by Atchison Village without any finding of liability or payment of any kind (including the non-contract claim of negligence alleged by Atchison Village) and is therefore entitled to recover her attorneys’ fees and costs incurred in defending this action.

Plaintiff filed its opposition on October 13, 2025, claiming several arguments: (1) That the language of the attorney’s fees provision is insufficiently broad to include tort claims; (2) The provision requires a party to have been found “at fault”; and (3) Even if Defendant is entitled to fees in defending the tort action, she would have to separate those from fees to which she is not entitled.

Analyses

Prevailing Party Attorney’s Fees

The Court finds that Defendant is entitled to an award of attorneys’ fees as the prevailing party pursuant to the parties’ contractual agreement. Under Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), attorneys’ fees are recoverable when authorized by contract. Further, Code of Civil Procedure section 1032, subdivision (a)(4), defines a “prevailing party” to include “a defendant in whose favor a dismissal is entered” and “a defendant as against those plaintiffs who do not recover any relief against that defendant.”

It is well established that a trial court retains jurisdiction to award attorneys’ fees notwithstanding a voluntary dismissal. (*Mesa Shopping Center-East, LLC v. O Hill* (2014) 232 Cal.App.4th 890, 898, citing *Gogri v. Jack in the Box Inc.* (2008) 166 Cal.App.4th 255, 261 [“In addition to retaining jurisdiction to vacate an untimely voluntary dismissal, trial courts retain jurisdiction to award attorney fees and costs following a voluntary dismissal.”].) Although Plaintiff voluntarily dismissed Defendant, such dismissal without prejudice does not preclude an award of contractual fees when the action includes non-contractual claims and the fee clause extends beyond breach of contract. (*Santisas v. Goodin* (1998) 17 Cal.App.4th 599, 617.)

Here, Paragraph 15 of the Atchison Village Mutual Homes Corporation Mutual Ownership Contract governs the parties’ entitlement to fees. (“Paragraph 15”) That provision states:

15. Legal Expenses and Attorney’s Fees

If legal proceedings must be instituted to enforce any provision of this agreement, or for the possession of the premises, the party found to be at fault shall pay all expenses of the prevailing party, including reasonable attorney’s fees and costs actually incurred.

Applying these principles, the Court finds Defendant’s position persuasive. Plaintiff cannot avoid the operation of Code of Civil Procedure section 1032, subdivision (a)(4), by urging a narrow interpretation of the contractual language that would undermine the statute’s purpose. Section 1032, by itself, expressly authorizes a fee award to “a defendant in whose favor a dismissal is entered.” If a conflict exists between a statute and a contractual provision, the statute controls. To construe

Paragraph 15 as requiring a judicial finding of fault before determining prevailing-party status would impermissibly impose a condition not contemplated by section 1032 and would defeat the Legislature's intent. Defendant cites no authority permitting a private ownership agreement to restrict or circumvent the statutory definition of a prevailing party. The only showing required is that Defendant achieved her sole litigation objective—the dismissal of the action—and that "Plaintiffs did not recover any relief against that defendant." She has done this.

Finally, the Court notes that Plaintiff invoked Paragraph 15 in the initial complaint to seek attorneys' fees against Defendant arising from the alleged flood incident, yet now argues that the same provision is inapplicable when asserted by Defendant. This inconsistent position further supports the conclusion that Defendant is the prevailing party for purposes of a fee award.

Plaintiff further argues that the attorney's fees language in Paragraph 15 is not broad enough to cover tort claims under *Khan v. Shim* (2017) 7 Cal.App.5th 49, 56-57 and that Defendant does not separate fees incurred in defending the tort claim from those incurred in the contract claim. This argument, taken as a whole, is not persuasive. The incident alleged to have occurred in 2020 serves as the factual basis for both the breach of contract and negligence claim asserted by Plaintiff. It follows that since both causes of action arise from the single occurrence, it would be disingenuous for Plaintiff to demand that Defendant separate the time billed for this single occurrence precisely to each specific cause of action.

Based on the foregoing, the Court finds that Defendant is the prevailing party under Cal. Code of Civ. Proc. § 1032(a)(4) and is entitled to fees and costs for defending this breach of contract and negligence case.

Reasonableness of Fees

The determination of what constitutes reasonable attorneys' fees is committed to the sound discretion of the court. *Westside Community for Independent Living, Inc. v. Obledo*, (1983) 33 Cal.3d 348, 355. "An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court." *Wershba v. Apple Computers, Inc.*, (2001) 91 Cal.App.4th 224, 255; see also *Melnyk v. Robledo*, (1976) 64 Cal.App.3d 618, 623. Thus, the award usually has to shock the conscience to be overturned. *In re Tobacco Cases I*, (2013) 218 Cal.App.4th 570, 587; see also *Raining Data Corp. v. Barrenechea*, (2009) 175 Cal.App.4th 1363, 1375 ("A trial court's attorney fee award will not be set aside 'absent a showing that it is manifestly excessive in the circumstances.'"); *Akins v. Enter. Rent-A-Car Co.*, (2000) 79 Cal.App.4th 1127, 1134.

Here, Defendant seeks \$94,218.32 in attorney's fees, which includes \$1,143.48 in costs representing 312 hours of work invested in this litigation. These fees and costs include \$10,140 for prosecuting this Motion, \$84,078.32 in defending this case from the onset, and costs.

In reviewing the declarations submitted by her counsel, the Court notes that while the hourly rates charged by Defendant's attorneys appear to be commensurate with their level of experience pursuant to the *Lodestar* factors, and the market factors as reported in the Clio's 2024 Legal Trends data, the Court notes that the litigation may have encountered certain inefficiencies where five (5) attorneys and two paralegals from the same firm billed this file throughout this lengthy litigation. When

reviewing the rates in terms of their reasonableness, the Court finds that a twenty-five percent (25%) downward adjustment is warranted (-\$23,268.63), given the inefficiencies. The Court finds that attorney's fees in the amount of \$69,805.89, plus costs in the amount of \$1,143.48, for a total award of \$70,949.37, is reasonable.

After reviewing the papers submitted by counsel, and considering the applicable statutory and decisional authorities, the Court finds that there is good cause to grant Defendant's Motion.

Ruling

Good cause therefore appearing, the Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

1. Plaintiff shall pay Defendant's attorney's fees in the amount of \$69,805.89
2. Plaintiff shall reimburse Defendant's costs in the amount of \$1,143.48 pursuant to its memorandum of costs filed on June 16, 2025. No other costs and fees are awarded.
3. Payments are due within thirty (30) days from the date of this order, or pursuant to a payment plan negotiated by the Parties, and presented to this Court in the form of a stipulation and proposed order. Absent this stipulation and proposed order, payments are due in thirty days.
4. Defendant is ordered to prepare and e-file a conforming order, approved as to form by Plaintiff, no later than ten (10) days from the date of this hearing.

**4. 9:00 AM CASE NUMBER: C23-01810
CASE NAME: KEVIN HUMPHREY VS. JASVIR SINGH SHAHI
HEARING ON SUMMARY MOTION
FILED BY: DILLARD TRUCKING, INC.
*TENTATIVE RULING:***

This hearing continued, *sua sponte*, to December 17, 2025 at 9:00 a.m in Department 16.

**5. 9:00 AM CASE NUMBER: C23-02459
CASE NAME: KYLE GARDNER VS. MARIO MADRIGAL
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT'S
RESPONSES TO REQUEST FOR ADMISSIONS, SET TWO AND CORRESPONDING FORM
INTERROGATORIES, SET TWO
FILED BY: GARDNER, KYLE R.
*TENTATIVE RULING:***

Summary

Plaintiff's Motion to Compel Further Responses to Request for Admissions, Set Two and Further Responses to Form Interrogatory No. 17.1, Set Two, is **granted** in part and **denied** in part as set forth herein.

Background

In this action, Plaintiff Kyle Gardner ("Plaintiff") alleges that he sustained personal injuries arising out

of a motor vehicle collision that occurred on October 13, 2021, in Contra Costa County. Plaintiff contends that a vehicle operated by Defendant Mario Valencia Madrigal (“Defendant”) struck the motorcycle he was riding at the intersection of James Donland Boulevard and South Royal Links Circle in the City of Pittsburg, California.

On August 20, 2024, Plaintiff served Requests for Admissions, together with Form Interrogatory No. 17.1, seeking that Defendant admit or deny the amounts paid for Plaintiff’s accident-related medical expenses and the necessity of the Kaiser treatment reflected in medical bills and records previously produced. Following meet-and-confer efforts, Plaintiff asserts that Defendant did not provide timely or complete responses and instead served deficient responses on May 27, 2025, precipitating the instant motion.

On August 8, 2025, Plaintiff filed and served a Motion to Compel Further Responses to Requests for Admission, Set Two, and the corresponding Form Interrogatories, Set Two. The motion is supported by a Notice, Separate Statement, the Declaration of Andrew Oberst, and a Proposed Order. Plaintiff maintains that he is entitled to unqualified admissions concerning the nature and extent of the Kaiser treatment he received, including the cost of that treatment, and to the identity of persons possessing information responsive to the Requests for Admission as sought in Interrogatory No. 17.1. Plaintiff further argues that Defendant’s assertion—that an independent medical examination is necessary to respond to Interrogatory No. 17.1—“ignores what facts are at issue herein as they relate to what a present-day physical examination of plaintiff could determine.”

On November 13, 2025, Defendant filed an opposition contending that the motion is premature and improperly seeks “to penalize Defendant for being unable to respond to complex medical questions before completing the necessary investigation.” Defendant maintains that the investigation necessary to respond to the interrogatories includes an Independent Medical Examination of Plaintiff by a defense neurologist, which has not yet been scheduled due to a dispute regarding the permissible scope of the examination.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Request for Admissions

The purpose for a request for admission under the Discovery Act is well established. . Requests for Admissions may be used to (1) establish the truth of specified facts, (2) admit a legal conclusion, (3) determine a party's opinion relating to a fact, (4) settle a matter in controversy, and (5) admit the genuineness of documents. C.C.P. §2033.010; Weil and Brown, Cal. Prac. Guide: Civil Procedure Before Trial (TRG 2025) ¶¶8:1288 - 8:1301.2. A fact that is admitted by a party under the procedure in CCP §§2033.010–2033.740 is eliminated as an issue. The fact cannot be contested by the admitting party at a later point in the case except following an order permitting amendment or withdrawal of the admission. In effect, an admission is a stipulation that binds the admitting party in that action. See *St. Mary v Superior Court* (2014) 223 CA4th 762, 775 (“Matters that are admitted or deemed admitted through RFA discovery devices are conclusively established in the litigation and are not subject to being contested through contradictory evidence”).

However, a party may present evidence at trial that is directly contrary to the party's previous admission if the admission was true at the time and the party later discovered evidence that refuted the admission. *Burch v Gombos* (2000) 82 CA4th 352, 355. In *Burch*, because the request for admission required the defendant to admit that it had no evidence at that point in time, the defendant was able to reply with an unqualified admission. Although CCP §2033.300(a) requires a noticed motion when a party seeks to amend or withdraw an admission, the party is under no duty to supplement prior Requests for Admissions if the party obtains new information that refutes the prior admission. *Burch, supra*, 82 CA4th at 360. Because the request for admission asked for the *defendant's knowledge at the time the question was posed, the response given by the defendant was true at the time and remained true at the time of trial.*

A request that a matter in controversy be admitted is usually made with little or no expectation that an admission will be made. Rather, its purpose is to set the stage for the cost-of-proof sanction that is a unique feature of CCP §2033.420 or to provide a predicate for an interrogatory requesting the evidence supporting the denial

The response to a request for admission must be “as complete and straightforward as the information reasonably available to the responding party permits.” CCP §2033.220(a). The section also imposes a duty of “reasonable inquiry.” CCP §2033.220(c). This means that the responding party must seek information beyond their personal knowledge and inquire of sources of information within their reach, custody, or control. At a minimum, the response should reflect all the information reasonably available to a party, including that in the possession of the party's attorney or designated expert (unless privileged). See *Chodos v Superior Court* (1963) 215 CA2d 318, 322.

The answer to a Request for Admission may be phrased as a denial of the entire request or of the part of the request that is untrue. See CCP §2033.220(b)(2). Like an admission, a denial must be as complete and straightforward as the information available to the responding party permits. CCP §2033.220(a). However, if the party knows that the fact that it is requested to admit is true, a denial should not be made. The requesting party may later recover the expense, including attorney fees, incurred in proving the denied fact (or the denied genuineness of a document) if the denial is later found by the court to have been unjustified. Counsel should be aware that the cost-of-proof sanction is not usually sought. Nevertheless, a court can award sanctions under CCP §2033.420 even after granting a summary judgment motion, if the court determines that the legal issues were “proved” as

part of the summary judgment motion. *Barnett v Penske Truck Leasing Co.* (2001) 90 CA4th 494, 498.

If the responding party gives lack of information or knowledge as a reason for failing to admit all or part of a request for admission, the party must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” CCP §2033.220(c). A general objection that a party has not “completed its investigation of the facts” and that the responses were prepared “on the basis of information presently available to and located ... upon reasonable investigation” does not prevent a specific admission from being conclusively established against the answering party, unless the party moves to withdraw or amend the admission. *Joyce v Ford Motor Co.* (2011) 198 CA4th 1478, 1489

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

In response to Form Interrogatory 17.1, Defendant is required to disclose if, how, and why he will contest the legitimacy of simple paid medical insurance figures to support his affirmative defense by disclosing all facts, documents and any witnesses to support his denial. If Defendant so chooses to unreasonably deny/contest the paid figures, their reasonableness, and their reasonable necessity due to the incident, required to retain experts or present evidence to establish the requested admissions, Plaintiff is entitled to post-trial cost of proof sanctions. C.C.P. §2033.420

After considering the papers submitted by Counsel, an applying the relevant statutory and decisional authority set forth herein, the Court makes the following findings and orders:

Ruling

The Court rules as follows on Plaintiff’s Motion to Compel:

1. Request for Admissions Set Two:
 - (a) Nos. 25, 26, 33, 37, 41, 45, 49, 53, 57, 61, 65, 69, 73, 13 77, 81, 85, 91, 95, 99 (Receipt of Medical Services). **Denied.**
 - (b) Nos. 27, 28, 34, 38, 42, 46, 50, 54, 58, 62, 66, 70, 74, 78, 82, 86, 92, 96, 100 (Medical Necessity). **Denied.**
 - (c) Nos. 29, 30, 35, 39, 43, 47, 51, 55, 59, 63, 67, 71, 75, 23 79, 83, 87, 88, 89, 90, 93, 94, 97, 101 (Payment Amounts) **Denied.**
 - (d) Nos. Nos. 31, 32, 36, 40, 44, 48, 52, 56, 60, 64, 68, 72, 76, 80, 84, 98, 102 (Reasonableness of Costs) **Denied.**
2. Interrogatory No. 17.1
 - (a) Nos. 25-102: **Denied** in part and **Granted** in Part. With respect to further responses to subparts 17.1(a) and (b), the Motion to Compel further response is **denied**. The Court accepts Defendant’s responses that it does not have enough information to provide further response until it has conducted an Independent Medical Examination.

(b) Further response to subparts 17.1(c) and (d) is **granted**. Defendant's objections are overruled. Defendant is ordered, for each subpart, to identify each person with knowledge of the facts that form bases for Defendant's denial and is ordered to disclose their addresses and telephone numbers as required by this interrogatory. Similarly, Defendant is ordered, for each subpart, to identify each document and tangible thing that supports the bases for Defendant's denial and is ordered to state the name, address and telephone number of each person who has knowledge of these documents. A referral to correspondence between counsel is insufficient.

3. Time for Further Responses. Defendant is required to provide further responses to Form Interrogatory No. 17.1(c) and (d) for Nos. 25-102 are due no later than ten (10) days from the date of this order.
4. Sanctions. Sanctions are denied. The Court finds that Defendants acted with substantial justification in making objections and preparing the responses that were served on Plaintiff. Each party to bear their own attorney's fees and costs for this Motion.
5. Plaintiff's Counsel is ordered to prepare and e-file a conforming order, approved as to form, no later than ten (10) days from the date of this hearing. Counsel are ordered to meet and confer to comply with this order and to take necessary and proper steps to implement this Court's order. The Court reserves its authority to refer this and all further discovery motions to a Discovery Referee.

6. 9:00 AM CASE NUMBER: C24-03185

CASE NAME: TRINA WEST VS. CRESCENT PARK EAH, L.P.

*HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT

FILED BY: WEST, TRINA

TENTATIVE RULING:

Summary

Plaintiff Trina West ("Plaintiff")'s Motion for Leave to File a First Amended Complaint for Damages and Injunctive Relief is **granted**. No appearance is required at the hearing on November 26, 2025.

Background

In this case, Plaintiff alleges a breach of contract and habitability arising out of her tenancy at 1172 Ellis St., Richmond, CA 94804. Defendant Crescent Park EAH, L.P. ("Defendant") owns, operates and leases this property to Plaintiff.

Plaintiff filed her Motion for Leave to File a First Amended Complaint on October 1, 2025. The Motion was accompanied by a Notice, Memorandum of Points and Authorities, Declaration of Michelle Endo, a Proposed First Amended Complaint, and Proof of Service. Plaintiff also lodged a proposed order.

Plaintiff seeks to amend her complaint to allege additional facts and claims against Defendant. Defendant did not file an opposition to this Motion.

Analysis

Standards Governing Leave to Amend

The Court has discretion to allow amendment of pleadings under Code of Civil Procedure section

473(a)(1) "in furtherance of justice," and "upon any terms as may be just." Code of Civil Procedure section 576 grants the Court discretion to allow amendment of a pleading "at any time before or after commencement of trial, in the furtherance of justice." (Code Civ. Proc. § 576.) "California courts have 'a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.' [Citation omitted.]" (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) (See also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 [" '[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.' [Citation omitted.],"; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761].)

"Ordinarily, courts should 'exercise liberality' in permitting amendments at any stage of the proceedings. [Citations omitted.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) (See also *Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]".].)

Non-Opposition

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose the Motion is a deemed to be Defendant's consent to the granting of the Motion.

Applied here, the Court finds good cause to grant leave.

Ruling

For the reasons set forth above, Plaintiff's Motion for Leave to File a First Amended Complaint is **granted**. The Court will execute the Proposed Order lodged by Plaintiff on October 1, 2025. Plaintiff's First Amended Complaint shall be deemed filed on November 26, 2025. Defendants shall have thirty (30) days to file a responsive pleading. All parties and counsel are ordered to appear at the case management conference on February 5, 2026. No appearance is required at the hearing on November 26, 2025.

7. 9:00 AM CASE NUMBER: C24-03428
CASE NAME: HAROLD WOULD DEVELOPMENT, LLC VS. COLE RICHMAN
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST**
FOR PRODUCTION OF DOCUMENTS (SET ONE)
FILED BY: HAROLD WOULD DEVELOPMENT, LLC

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 7 and 8. The following discovery motions are scheduled to be heard on by the Court on November 26, 2025 at 9:00 a.m. in Department 16:

1. Plaintiff Harold Would Development, LLC's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One and for Sanctions from Defendant Joshua Ferdman;
2. Plaintiff Harold Would Development, LLC's Motion to Compel Further Responses to Plaintiff's Specially Prepared interrogatories, Set One. for Production of Documents, Set One, and for Sanctions from Defendant Joshua Ferdman;

The Court also has scheduled hearings on Plaintiff's discovery motion in Department 57 before Commissioner Yamamoto for January 9, 2026 at 10:30 a.m:

3. Plaintiff Harold Would Development, LLC's Motion to Compel Specially Prepared Interrogatories, Set Two, and for Sanctions from Defendant Joshua Ferdman;
4. Plaintiff Harold Would Development, LLC's Motion to Compel Response to Form Interrogatories, and for Sanctions from Defendant Joshua Ferdman;
5. Plaintiff Harold Would Development, LLC's Motion for Deemed Admissions and for Sanctions from Defendant Joshua Ferdman;

The Court vacates all five (5) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

This is a straightforward matter for damages following the abandonment of a commercial lease. Plaintiff Harold Would Development, LLC is the owner and landlord of commercial premises located at 1545 Locust Street, Walnut Creek, CA ("Premises"). Defendants Cole Richman and Joshua Ferdman are the signatory and tenants under a lease signed on August 10, 2022. Defendant Ferdman's company JM Bullion, LLC, a Wyoming corporation, is also a lease guarantor. After Plaintiff filed an unlawful detainer complaint against the defendants, they abandoned the Premises, and Plaintiff then recovered possession of the Premises pursuant to Code Civ. Pro. § 1951.35. Plaintiff filed this action for damages against all defendants on December 18, 2024.

Plaintiff propounded Discovery on Defendant Joshua Ferdman. Plaintiff claims that the responses prepared by Defendant are either incomplete and require further responses or, for the motions to be heard on January 9, 2025, responses were not served at all. Defendant claims that he prepared

responses, without objections, to the discovery which is the subject of the November 26, 2026 hearing. Plaintiff disputes that the responses were complete.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are five (5) pending discovery motions on calendar in the matter, scheduled for November 26, 2025, January 9, 2026. These motions and opposition filed to date consists of over five hundred pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on November 26, 2025, and January 9, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are vacated from Department 16 and 57's calendar and are referred for further hearing to the Discovery Referee.

2. By no later than December 5, 2025, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by December 5, 2025, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, December 8, 2025. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for November 26, 2025 and January 9, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

8. 9:00 AM CASE NUMBER: C24-03428

CASE NAME: HAROLD WOULD DEVELOPMENT, LLC VS. COLE RICHMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S SPECIALLY PREPARED INTERROGATORIES (SET ONE)**

FILED BY: HAROLD WOULD DEVELOPMENT, LLC

TENTATIVE RULING:

See Line 7, above.

9. 9:00 AM CASE NUMBER: C25-00491
CASE NAME: KATHERINE WILSON VS. ALYSSA DOE
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. KELLER
FILED BY: DOE, ALYSSA
TENTATIVE RULING:

Summary

This Tentative Ruling is for Lines 9 and 10. Christopher J. Keller's Motions to be Relieved as Counsel of Record for Defendants Alyssa Doe and Elite Facials, LLC are **granted**. No appearance is required at the hearing on November 26, 2025.

Background

On September 17, 2025, Christopher J. Keller, Esq., filed a Notice of Motion and Motion to be Relieved as Counsel of Record for Defendants Alyssa Doe and Elite Facials, LLC. In his Motion, counsel cites to "irreconcilable differences," which the Court considers to be a breakdown in the attorney-client relationship that makes continued representation unreasonably difficult. The Motions are not opposed by Plaintiff. Notice was provided to Defendants Alyssa Doe and Elite Facials, LLC.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to both Defendants and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Defendants' Counsel. The Court acknowledges that the prejudice to Defendants are minimal, as they have not shown a willingness or availability to be involved in this case. This case was filed in 2025 and a trial date has not been set. Defendants have time to retain replacement counsel.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. Both Motions are **granted**.

Counsel is ordered to submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053). The withdrawal is effective upon service of a copy of the File Endorsed Order to Defendants Alyssa Doe and Elite Facials, LLC by mail at his last known address. No appearance is necessary at the hearing on November 26, 2025.

10. 9:00 AM CASE NUMBER: C25-00491
CASE NAME: KATHERINE WILSON VS. ALYSSA DOE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. KELLER**
FILED BY: ELITE FACIALS, LLC
TENTATIVE RULING:

See Line 9, above.

11. 9:00 AM CASE NUMBER: C25-00654
CASE NAME: IFGFGISI EAST BAY CHURCH VS. GARY HEATH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: HEATH, GARY L.
TENTATIVE RULING:

Defendants Gary Heath and Kelly Heath's demurrer to the complaint is **overruled**. Defendants shall file and serve an answer within 10 days of notice of entry of this order.

Plaintiff IFGFGISI East Bay Church (the Church) is suing Gary Heath and Kelly Heath, individually and as trustees of The Heath Family Trust and d/b/a The Pool Doctor. The Church alleges that it owns property abutting Defendants' property and that the Church has an easement over a portion of Defendants' property. The Church is bringing claims for (1) ejectment, (2) enforcement of easement, (3) declaratory relief, (4) breach of easement, (5) trespass, (6) nuisance and (7) injunctive relief.

As an initial matter, the Court notes that Defendants filed a notice of motion and a memorandum, but did not file a proper demurrer. "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." (California Rules of Court, rule 3.1320 (a); see also Code of Civil Procedure section 430.60.) The Court exercises its discretion to consider the demurrer despite the failure to comply with this section.

Gary Heath and Kelly Heath have demurred to each cause of action based upon the failure to state sufficient facts to constitute a cause of action, Code of Civil Procedure section 430.10(e).

Defendant filed its reply on November 20, which is one day late. The Court again exercises its discretion to consider the late filed reply, however, the Court cautions that future violations of the rules may result in the filing being disregarded. (California Rules of Court, rule 3.1300(d).)

Individual Capacity

Defendants' main argument is that the Heaths should not be sued in their individual capacity and should only be sued as trustees of The Heath Family Trust because the Trust owns the property at issue.

" '[T]he trustee, rather than the trust, is the real party in interest in litigation involving trust property.' [Citations.]" (*Nicholson v. Fazeli* (2003) 113 Cal.App.4th 1091, 1102.) While mere control over a trust is not sufficient to subject a trustee to individual liability, a trustee may be "personally

liable . . . for any obligation arising from ownership or control of trust property” if he or she “*intentionally or negligently* acted or failed to act in a manner that establishes personal fault.” (*Haskett v. Villas at Desert Falls* (2001) 90 Cal.App.4th 864, 877-878; see Prob. Code, §§ 18001, 18002.)

The parties agree that the Heath Family Trust owns the property at issue here. The Heaths are trustees of the Trust and are alleged to run a business, in their individual capacities, called The Pool Doctor. (Comp. ¶¶6 -7.) Plaintiff alleges that Defendants have installed fencing gates with locks in the easement area and not provided keys to Plaintiff. Defendants have also stored vehicles, storage containers, tools and equipment within the easement area. (Comp. ¶¶22-23.)

These allegations show intentional or at least negligent conduct in failing to clear the easement area and in not providing keys to the gate to Plaintiff. The Court finds that these allegations are sufficient at the pleading stage to allow Plaintiff to sue the Heaths in their individual capacities for claims related to the easement.

Ejectment (c/a 1)

In demurring to the ejectment claim, Defendants argue that the complaint does not allege that the Heaths are in possession of the easement area in their individual capacities. As explained above, there are sufficient allegations to sue the Heaths in their individual capacities and therefore, the demurrer to cause of action one is overruled.

Easement Claims (c/a 2 and 4)

Defendants argue that the complaint does not allege the scope of the easement or how Defendants’ acts exceed the permissible uses of the servient estate. The complaint includes a copy of the easement, which states that it is a right of way easement “for use as a roadway for vehicles of all kinds, pedestrians and animals... [and utilities]”. (Comp. ex. 1.) Further, the complaint alleges that Defendants are blocking the easement. (Comp. ¶¶22-23.) These allegations are sufficient to show the scope of the easement and how Defendants’ are exceeding their permissible use.

Defendant also argues that the facts showing violations of the easement are insufficient and it is unclear what the Heaths did in their individual capacities. As noted above, the allegations are sufficient for the Heaths to be sued in their individual capacities.

The demurrer to cause of action two is overruled.

Declaratory Relief (c/a 3) and Injunctive Relief (c/a 7)

For both the declaratory relief and injunctive relief claims, Defendants argue that there would be no actual controversy if the claims for the easement, trespass and nuisance fail. The demurrer to the easement, trespass and nuisance claims is overruled and therefore, this argument fails.

Defendants argue that there are only vague allegations of the Heaths doing business as The

Pool Doctor and they do not support the theory that the Heaths were doing anything in their individual capacities on the property owned by their Family Trust and operated by a corporation. As discussed above, there are sufficient facts to show that the Heaths could be liable in their individual capacities.

Defendants also claim that the Trust property is occupied by K & G Unlimited, a California Corporation, dba The Pool Doctor. The complaint does not name K & G Unlimited and Defendants did not include a request for judicial notice in their moving papers of the fact that K & G Unlimited occupies the property. Arguments regarding an unnamed corporation are not properly before this Court. Further, it does not appear that this issue was included in the parties' meet and confer.

Breach of Easement (c/a 4)

As to the breach of easement claim, Defendants argue that the Trust owns the property and therefore, the Heaths cannot be liable for breach of the easement in their individual capacities. As noted above, the allegations are sufficient for the Heaths to be sued in their individual capacities. Further, to the extent there are different rules for breach of contract, Defendants did not cite any authority to support this position and therefore, the demurrer to cause of action four is overruled.

Trespass (c/a 5)

" 'The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm.' [Citation.]" (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 90–91.)

As to the trespass claim, Defendants provide the elements for trespass and then argues that Plaintiff has failed to allege facts to support each of the elements of trespass. Defendants offer no analysis or explanation on why each element of trespass is missing. Defendants have not met their burden of showing that the trespass claim fails and the demurrer is overruled as to cause of action five.

Nuisance (c/a 6)

As to the nuisance claim, Defendants again argue that they should not be sued in their individual capacities. As explained above, there are sufficient facts for the Heaths to be sued in their individual capacities. The demurrer is overruled as to cause of action six.

12. 9:00 AM CASE NUMBER: C25-01094

CASE NAME: FRANKLIN CHERRY VS. CHARMAINE COLLADO

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS FROM DEFENDANT CHARMAINE COLLADO TO REQUEST FOR IDENTIFICATION AND PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: CHERRY, FRANKLIN P.

TENTATIVE RULING:

SUMMARY

Plaintiff Franklin Cherry's motion to compel further responses to Request for Production of Documents, Set One, Nos. 4 and 19, is **denied**, for the reasons set forth below.

BACKGROUND

This action arises from Plaintiff's allegations that he suffered elder abuse while residing at a Residential Care Facility for the Elderly owned and/or operated by Defendants at 984 Bermuda Drive, Concord, California ("Facility").

On August 12, 2025, Plaintiff filed the present motion seeking further responses to Request for Production, Set One, Nos. 4, 14, and 19. Plaintiff subsequently withdrew the motion as to Request No. 14 by amended notice, leaving only Requests Nos. 4 and 19 at issue. The motion is supported by a memorandum of points and authorities, separate statement, and declaration of counsel.

Defendants opposed the motion on November 13, 2025, submitting a declaration of counsel asserting that, following extensive meet-and-confer efforts, they served third amended responses resolving all outstanding issues. As to the disputed requests, Defendants identified responsive documents by Bates number and stated that, after a diligent search and inquiry, no additional responsive documents were known to exist.

Plaintiff's reply, filed November 19, 2025, contends that the amended responses fail to strictly comply with Code of Civil Procedure sections 2031.220 and 2031.230.

ANALYSES

1. Scope of Discovery

Discovery in California is governed by the Civil Discovery Act. (Code Civ. Proc., § 2016.010 et seq.) Parties are entitled to broad discovery of any non-privileged matter relevant to the subject matter of the action or reasonably calculated to lead to admissible evidence. (§ 2017.010; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.)

However, the Court may restrict discovery when the burden, expense, or intrusiveness outweighs the likelihood that the information will lead to admissible evidence. (§ 2017.020, subd. (a).)

2. Meet-and-Confer Requirements

The Discovery Act requires parties to engage in a reasonable, good faith effort to resolve disputes informally before seeking court intervention. (§ 2016.040; see *Golf & Tennis Pro Shop, Inc. v. Superior Court (Frye)* (2022) 84 Cal.App.5th 127, 138.) Local Rules of the Contra Costa County Superior Court impose similar requirements and emphasize that discovery motions should be filed “sparingly” and only when disputes cannot otherwise be resolved. (Local Rules, rules 2.121(e), 2.122(c).) The record reflects that counsel satisfied these obligations prior to filing this motion.

3. Standards Governing Motions to Compel Further Responses

A party moving to compel further responses must show good cause supporting the discovery sought. (§ 2031.310, subd. (b)(1).) Once such a motion is filed, the burden shifts to the responding party to justify any objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Where a party asserts an inability to comply, section 2031.230 requires a verified statement affirming that: (1) a diligent search and reasonable inquiry were made; (2) the documents never existed, were destroyed, lost, or are no longer within the party’s possession, custody, or control; and (3) the identity and address of any person or organization believed to have the requested items. A response lacking these representations is defective.

4. Adequacy of Defendants’ Responses

Based on the papers submitted, the Court finds that Defendants’ third amended responses substantially comply with section 2031.230. Defendants identified responsive documents by Bates number and affirmatively represented that they conducted a diligent search and no further responsive documents exist. While the statutory language is not repeated verbatim, the substance of the representation sufficiently conveys Defendants’ claimed inability to produce additional documents.

The Court is entitled to rely on counsel’s representations of compliance under penalty of perjury and penalty of sanctions should later evidence reveal otherwise. If Defendants intentionally misrepresented their compliance to avoid production or conceal documents, the Discovery Act and Rules of Professional Responsibility provide appropriate remedies, including monetary sanctions, contempt and referral to the State Bar.

On the present record, Plaintiff has not demonstrated that Defendants’ responses are incomplete or that additional responsive documents exist. The Court therefore concludes that Defendants’ responses to Requests Nos. 4 and 19 satisfy the requirements of the Civil Discovery Act.

RULING

Plaintiff Franklin Cherry’s Motion to Compel Further Responses to Request for Production of documents, Set One, Request Nos. 4 and 19, is **denied**. The parties’ competing requests for sanctions are **denied**. Each party shall bear their own attorney’s fees and costs incurred in connection with this motion. Defendant shall prepare and electronically file a proposed order consistent with this ruling within ten (10) days, attaching this tentative ruling as an exhibit.

13. 9:00 AM CASE NUMBER: MSC21-01691

CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**

FILED BY: GCL NEW ENERGY, INC.

TENTATIVE RULING:

The hearing on this motion is vacated. The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

14. 9:00 AM CASE NUMBER: MSC21-01691

CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.

***HEARING ON MOTION IN RE: DISQUALIFY MICHAEL NELSON AS COUNSEL FOR DEFENDANT**

FILED BY: GCL NEW ENERGY, INC.

TENTATIVE RULING:

The hearing on this motion is vacated. The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-02119

CASE NAME: JOHN ROE J.H., AN INDIVIDUAL VS. PHILLIP WEBB

***HEARING ON MOTION FOR DISCOVERY COMPEL CALIFORNIA COMMISSION ON TEACHER CREDENTIALING TO PRODUCE RECORDS SUBPOENAED BY PLAINTIFF**

FILED BY: ROE J.H., AN INDIVIDUAL, JOHN

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff is **moot** to the extent CTC has already produced responsive documents, and is otherwise **denied**

Background

On May 27, 2025, Plaintiff John Roe J.H. ("Plaintiff") filed a Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff. The Motion was accompanied by the Declaration of Counsel Veronica Diaz (submitted via errata) and a Separate Statement. Plaintiff seeks an order compelling CTC to release complete, unredacted records related to Pittsburgh Unified School District's former employee, Defendant Phillip Webb ("Defendant" or "Webb"), pursuant to a records subpoena. Plaintiff contends the documents sought are relevant, reasonably calculated to lead to the discovery of admissible evidence, and that good cause exists for

their production. Plaintiff further argues that any privacy interests are outweighed by Plaintiff's need for the materials, relying on Code of Civil Procedure §§ 2017.010, 2025.480, and 1987.1, as well as general discovery principles under the Discovery Act. Plaintiff acknowledges that Cal. Education Code § 44230 limits disclosure of credentialing information, but asserts that its restrictions have limited applicability under the circumstances.

CTC, represented by the Office of the Attorney General, filed an opposition, which Defendant joined. The opposition, supported by the Declaration of Counsel Joseph Halabrin, argues that (1) CTC's files are privileged; (2) the Education Code protects substantial privacy interests; (3) CTC employees risk criminal penalties if they disclose the requested documents without a court order; (4) Defendant's credentialing documents are not relevant; (5) the requested materials are not business records; and (6) CTC has already produced redacted copies of responsive records—105 pages, Bates-stamped PWEBB000001–PWEBB000105—including copies of Webb's credentials, credential history, and redacted portions of his applications.

Plaintiff filed a reply that addresses each argument raised by CTC. The Court has reviewed and considered those arguments in issuing this ruling.

Analysis

Plaintiff's Subpoena seeks information expressly deemed confidential by statute. (Ed. Code, §§ 44230, 44245.) Education Code section 44230, subdivision (a), provides:

“(a)(1) The commission shall maintain for public record, and may disclose only the following information relating to the credentials, certificates, permits, or other documents that it issues: the document number, title, term of validity, subjects, authorizations, effective dates, renewal requirements, and restrictions. The commission may also disclose the last known business address of any applicant or credential holder.

(2) Notwithstanding any other provision of law, except as provided for in Sections 44230.6 and 44248, **no information**, other than that set forth in paragraph (1), **may be disclosed by the commission absent an order from a court of competent jurisdiction.**”

Upon review, the Court finds CTC's interpretation of this section to be correct. The Legislature has expressly limited the scope of information that CTC may disclose without a court order to the items enumerated in subdivision (a)(1), together with the credential holder's last known business address. The statute mandates that “[n]o other information may be disclosed.” (Ibid. [emphasis added].)

The Court also finds persuasive CTC's argument that the requested files are privileged pursuant to Education Code § 1040, which encompasses documents protected by attorney-client privilege, the work-product doctrine, and the deliberative process privilege. Section 1040 further provides that:

“Disclosure of the information is against the public interest because there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice; but no privilege may be claimed under this paragraph if any person authorized to do so has consented that the information be disclosed in the proceeding.”

(Cal. Ed. Code, § 1040(b)(2).)

Here, the statutory purpose underlying the privilege supports nondisclosure absent consent from the credential holder. Defendant has not provided consent and, in fact, has joined in CTC's opposition to disclosure.

The record further establishes that CTC has produced all documents to which Plaintiff is entitled under the Education Code, albeit with redactions required by law. To that extent, the Motion is partially moot.

Having reviewed the moving papers, opposition, reply, and all supporting materials, and having applied the relevant statutory provisions and governing legal standards, the Court finds that Plaintiff has not established good cause for the relief sought. Accordingly, the Court rules as follows.

Ruling

Good cause not having been shown, Plaintiff's Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff is **moot** to the extent CTC has already produced responsive documents, and is otherwise **denied**. CTC is ordered to prepare and electronically file a proposed order consistent with this ruling, attaching a copy of this tentative ruling, within ten (10) days of the hearing

16. 9:01 AM CASE NUMBER: C24-00731

CASE NAME: KEVIN RUBIO VS. LA AURORA LIQUOR

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO DEFENDANT'S DISCOVERY REQUESTS**

FILED BY: LA AURORA LIQUOR

TENTATIVE RULING:

Summary

This Court will conduct a hearing on:

(1) An Order to Show Cause as to Why this Case should not be Dismissed for Plaintiff Kevin Rubio's ("Plaintiff") Failure to Appear at the Case Management Conference on November 17, 2025. Per the Court's Notice mailed to Plaintiff Kevin Rubio on November 17, 2025, Plaintiff is ordered to appear at the November 26, 2025 to Show Cause as to why he failed to appear at the Case Management Conference. He is ordered to appear at 9:00 a.m, or soon thereafter, trailing the hearing on this Motion. He may appear via Zoom.

(2) Defendant La Aurora Liquor's Motion to Compel to Compel Responses from Plaintiff to Defendant's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One. With respect to Defendant La Aurora Liquor's ("Defendant") Motions, no timely responses were served by Plaintiff, despite an extension of time granted to Plaintiff's former counsel. Furthermore, Plaintiff did not file a timely opposition to this Motion. Accordingly, Defendant's Motions are **granted**.

Background

This is a personal injury case where Plaintiff alleges that he was assaulted and battered by an unknown and unnamed employee of Defendant at its La Aurora Liquor Store located at 3305 Willow Pass Road, Bay Point, California on or about April 6, 2022. The attack allegedly caused him to suffer injuries, including emotional distress.

Defendant propounded initial discovery on Plaintiff through his counsel, Corey Hankins, on March 27, 2025. Mr. Hankins requested an extension because he had difficulty reaching Plaintiff. Plaintiff was granted two extensions to respond to discovery, the latest extension required verified responses no later than May 30, 2025. Plaintiff did not serve timely responses.

On July 5, 2025, Defendant filed this Motion to Compel Responses from Plaintiff to Defendant's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One. The Motions were supported by Declaration of Counsel Akhila Ganapathy, and a Memorandum of Points and Authorities. Service was accomplished on Plaintiff's former counsel, Corey Hankins. Mr. Hankins withdrew as Counsel on October 30, 2025.

Defendant's Counsel represents that Plaintiff has not served responses to the requested discovery, which is the subject of the Motion. Defendant also represents, and the Court's files confirm, that Plaintiff did not file a timely opposition to this Motion, which was due on November 13, 2025.

Analyses

Procedural Rules relating to Self-Represented Litigants

The Court is aware that Plaintiff is proceeding without an attorney in his lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th

587, 594. Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Non-Opposition

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Plaintiff’s consent to the granting of Discovery motions.

Ruling

Good cause appearing, the Court **grants** Defendant’s Motion to Compel responses to Discovery and will execute the proposed order lodged on June 6, 2025, attaching a copy of this tentative ruling.

17. 9:01 AM CASE NUMBER: C25-01094

CASE NAME: FRANKLIN CHERRY VS. CHARMAINE COLLADO

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE FROM DEFENDANT
CHARMAINE C. COLLADO TO SPECIAL INTERROGATORIES, SET ONE**

FILED BY: CHERRY, FRANKLIN P.

TENTATIVE RULING:

This Motion was withdrawn by Plaintiff Franklin Cherry on November 12, 2025.